PRESS RELEASE

Eight Members Of Bronx Gangs “Sev Side” And “Third Side” Charged With Murder, Racketeering, And Related Violent Offenses

Thursday, February 23, 2023

For Immediate Release

U.S. Attorney's Office, Southern District of New York

Damian Williams, the United States Attorney for the Southern District of New York, and Keechant L. Sewell, Commissioner of the New York City Police Department (“NYPD”), announced the unsealing today of an Indictment charging KEVIN PEREZ, a/k/a “Kay Flock,” a/k/a “Kay,” a/k/a “KK,” DEVON MASON, a/k/a “BJ,” ERVIN BEAMON, a/k/a “EJ,” NICHOLAS JOHNSON, a/k/a “Nick,” SEAN SMITH, a/k/a “Sticky,” and JOSSI CASTRO, a/k/a “Jesse,” with racketeering conspiracy and other crimes related to their membership in “Sev Side,” or “DOA,” a street gang based in the Bronx, New York. On January 26, 2023, a Superseding Indictment was unsealed charging ISZAYAH ROWSON, a/k/a “Zay Munna,” a/k/a “Zay,” and MICHAEL GANT, a/k/a “AP,” with racketeering conspiracy and other crimes related to their membership in “Third Side,” a street gang also based in the Bronx, New York, that was closely affiliated with Sev Side. PEREZ was also charged with the gang-related murder of Hwascar Hernandez, who was shot to death on December 16, 2021, in the Hamilton Heights section of Upper Manhattan. PEREZ, MASON, BEAMON, JOHNSON, ROWSON, and GANT were further charged with multiple other violent crimes in connection with the Sev Side and Third Side gangs, including attempted murder and assault with a dangerous weapon arising from seven shootings committed in the

Bronx between June 2020 and February 2022. The Sev Side Indictment is assigned to United States District Judge Lewis J. Liman. The Third Side Indictment is assigned to United States District Judge Paul A. Engelmayer.

ROWSON and GANT are currently in federal custody in connection with the charges contained in the Third Side Superseding Indictment. MASON, JOHNSON, and CASTRO were arrested this morning in the Bronx and are expected to be presented later today before Magistrate Judge Valerie Figueredo. PEREZ, who was in state custody, has been transferred to federal custody and is also expected to be presented later today. SMITH and BEAMON are fugitives.

U.S. Attorney Damian Williams said: “Over a span of several years, the members of these gangs allegedly terrorized neighborhoods in the Bronx and Manhattan by killing and shooting other people. Through these charges, we will hold Sev Side and Third Side members responsible for plaguing our communities with gun violence.”

NYPD Commissioner Keechant L. Sewell said: “The deadly nexus of gangs and illegal guns in New York City is a grave threat to public safety in our city. Combatting this crisis is the NYPD’s top priority, and today’s indictments are another step toward ridding our streets of violence and fear. I want to thank the U.S. Attorney’s Office for the Southern District of New York and everyone else involved with this case who worked to make our city safer for all the people we serve.”

According to the allegations in the Sev Side Indictment and the Third Side Superseding Indictment and statements previously made on the record in this case and related matters:[1]

From at least 2019 to 2022, members of Sev Side and Third Side, two street gangs based in the 48th Precinct in the Bronx, New York, aligned with one another to terrorize their own and surrounding neighborhoods by committing indiscriminate shootings against members of rival street gangs. Members of the gangs also promoted the gangs and gun violence on social media and through music they created and promoted, which referenced real acts of violence.

For years, Sev Side and Third Side engaged in disputes with rival crews in the Bronx and in Manhattan, which resulted in numerous acts of violence, including the following:

- PEREZ murdered Hwascar Hernandez in broad daylight in Manhattan on December 16, 2021;
- PEREZ, GANT, and ROWSON shot at rival gang members on June 20, 2020;
- JOHNSON shot at a rival gang member on June 26, 2020;
- GANT shot at rival gang members on July 7, 2020;
- GANT shot at rival gang members on July 16, 2020;
- ROWSON shot at a rival gang member on December 13, 2020;

- PEREZ, MASON, and BEAMON shot at rival gang members on November 10, 2021; and
- MASON shot at a rival gang member and hit an innocent bystander on February 10, 2022.

* * *

A chart containing the names of the defendants who were charged today and on January 26, 2023, and the charges and minimum and maximum penalties they face is attached. All of the defendants are residents of the Bronx, New York.

The statutory minimum and maximum penalties are prescribed by Congress and are provided here for informational purposes only, as any sentencings of the defendants would be determined by a judge.

Mr. Williams praised the outstanding investigative work of the NYPD and thanked the New York County District Attorney’s Office and the Bronx County District Attorney’s Office for their assistance.

This case is being handled by the Office’s Violent and Organized Crime Unit. Assistant U.S. Attorneys Elizabeth Espinosa, Jim Ligtenberg, and Ni Qian are in charge of the prosecution.

The charges contained in the Indictment and the Superseding Indictment are merely accusations and the defendants are presumed innocent unless and until proven guilty.

Defendant	Age	Charges	Minimum and Maximum Penalties
KEVIN PEREZ	19	Racketeering Conspiracy, Murder in Aid of Racketeering, Use of a Firearm Resulting in Death, Attempted Murder and Assault with a Dangerous Weapon in Aid of Racketeering, Use of a Firearm for Attempted Murder and Assault with a Dangerous Weapon	Mandatory life in prison or death
DEVON MASON	24	Racketeering Conspiracy, Attempted Murder and Assault with a Dangerous Weapon in Aid of Racketeering, Use of a Firearm for Attempted Murder and Assault with a Dangerous Weapon, Possession of a Firearm with Defaced Serial Number	Maximum of life in prison; mandatory minimum 20 years to run consecutive to any other sentence

ERVIN BEAMON	23	Racketeering Conspiracy, Attempted Murder and Assault with a Dangerous Weapon in Aid of Racketeering, Use of a Firearm for Attempted Murder and Assault with a Dangerous Weapon	Maximum of life in prison; mandatory minimum 10 years to run consecutive to any other sentence
NICHOLAS JOHNSON	21	Racketeering Conspiracy, Attempted Murder and Assault with a Dangerous Weapon in Aid of Racketeering, Use of a Firearm for Attempted Murder and Assault with a Dangerous Weapon	Maximum of life in prison; mandatory minimum 10 years to run consecutive to any other sentence
SEAN SMITH	32	Racketeering Conspiracy, Possession of a Firearm After a Felony Conviction	Maximum of 30 years in prison
JOSSI CASTRO	25	Racketeering Conspiracy	Maximum of 20 years in prison
ISZAYAH ROWSON	22	Racketeering Conspiracy, Attempted Murder and Assault with a Dangerous Weapon in Aid of Racketeering, Use of a Firearm for Attempted Murder and Assault with a Dangerous Weapon; Transportation and Receipt of a Firearm While Under Felony Indictment	Maximum of life in prison; mandatory minimum 20 years to run consecutive to any other sentence
MICHAEL GANT	21	Racketeering Conspiracy, Attempted Murder and Assault with a Dangerous Weapon in Aid of Racketeering, Use of a Firearm for Attempted Murder and Assault with a Dangerous Weapon	Maximum of life in prison; mandatory minimum 20 years to run consecutive to any other sentence

[1] As the introductory phrase signifies, the entirety of the text of the Indictment and the Superseding Indictment and the description of the indictments set forth herein constitute only allegations, and every fact described should be treated as an allegation.

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VIOLENT CRIME

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